

MUTUAL NON-DISCLOSURE AGREEMENT

PREAMBLE

This Mutual Non-Disclosure Agreement ('Agreement') is entered into on January 15, 2025 ('Effective Date'), by and between Apex AI Technologies Corp., a Delaware corporation ('Disclosing Party'), and Nexus Legal Analytics Inc., a California corporation ('Receiving Party'). Party A and Party B are collectively referred to as the 'Parties'.

SECTION 1. CONFIDENTIAL INFORMATION

For purposes of this Agreement, 'Confidential Information' shall include all non-public, proprietary, or sensitive technical, business, financial, legal, or customer information disclosed by one Party to the other Party, whether orally, visually, or in writing.

Confidential Information explicitly includes software source code, AI model weights, training datasets, client lists, and pricing schedules.

SECTION 2. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees to hold and maintain all Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information of like nature, but in no event less than reasonable care.

The Receiving Party shall not disclose Confidential Information to any third party except to its officers, directors, employees, and legal advisors who have a strict need-to-know and are bound by confidentiality obligations at least as restrictive as those contained herein.

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SECTION 3. EXCLUSIONS FROM CONFIDENTIALITY

Confidential Information does not include information that: (a) is or becomes publicly available through no breach of this Agreement by Receiving Party; (b) was already rightfully in Receiving Party's possession prior to disclosure; (c) is independently developed by Receiving Party without reference to or reliance upon Disclosing Party's Confidential Information; or (d) is required to be disclosed by applicable court order or law.

SECTION 4. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and remain in effect for a term of three (3) years. The confidentiality obligations under Section 2 shall survive termination of this Agreement for a period of five (5) years following disclosure.

Either Party may terminate this Agreement at any time upon thirty (30) days written notice to the other Party.

SECTION 5. GOVERNING LAW AND REMEDIES

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without giving effect to conflict of law principles. Disclosing Party shall be entitled to seek injunctive relief in any court of competent jurisdiction to prevent unauthorized disclosure.